
Watching Your Back: Identifying Organization and Movement Counter-Surveillance via FOIA Requests (1989 – 1992)

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Abstract

I show early results from a project modeling a novel dataset of Freedom of Information Act (FOIA) request logs from the Federal Bureau of Investigation (FBI) as a bipartite network. FOIA enables individuals to request information from government agencies and was one of the earliest laws worldwide enabling this type of government oversight (Pozen and Schudson 2018). Existing work demonstrates that most requesters are from private sector agencies seeking information on regulatory processes (Kwoka 2018). However, since the FBI is a law enforcement agency without a private sector counterpart and has historically been the subject of conspiracy theories (Weiner 2012), I hypothesize that requesters seek information on information gathered during surveillance processes and these practices are informed by their orientation towards the state.

This project addresses the following questions: 1. How does FOIA serve to obtain knowledge on state surveillance and 2. How do different orientations to state power shape differences in information retrieval and use?

Requester-subject relations are modeled as a bipartite network from data processed from publicly available FBI archival materials. This includes the requester, subject matter, and the year and outcome of the request. To further organize subjects, I group subjects into "topics" to create requester-topic networks. I narrow the dataset down by including all requests made by requesters within topics of interest: Art/Entertainment, Scientology, Civil Rights/Black Nationalist Movements and the Kennedy Assassination as well as the related topics of Religion, Cults White Supremacist Groups and the Kennedy Family. The final dataset consists of 11,400 requests made by 1417 individuals across 6107 subjects.

Early results show that various centrality measures capture different types of characteristics regarding requester type and behavior. For instance, while degree centrality captures the volume of requests made by a requester or on a given topic, betweenness centrality is a measure of requester diversity. Closeness and eigenvalue centrality serve as various metrics of prestige. Finally, I demonstrate that frequency and patterns of FOIA requests are responsive to exogenous events, as demonstrated by the changes in subject metrics around the assassination of President Kennedy and the Church of Scientology and associated subjects.

Conspiracy theories around President Kennedy's assassination led to the establishment of the Kennedy archives in the National Archives in 1992 (Rao and Greve 2024). Around the same time, the Church of Scientology was engaged in a public facing legal battle with the

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IRS in an attempt to reestablish their tax-exempt status as a religious institution and would eventually reacquire its tax-exempt status in 1993 (Halupka 2014). These two events offer test cases to study conspiratorial and antagonistic orientations toward the state and the respective ways in which requesters involved engage with issues around transparency.

This project contributes to literature on surveillance and conspiracy by examining how individuals make sense of surveillance in a variety of ways.

References

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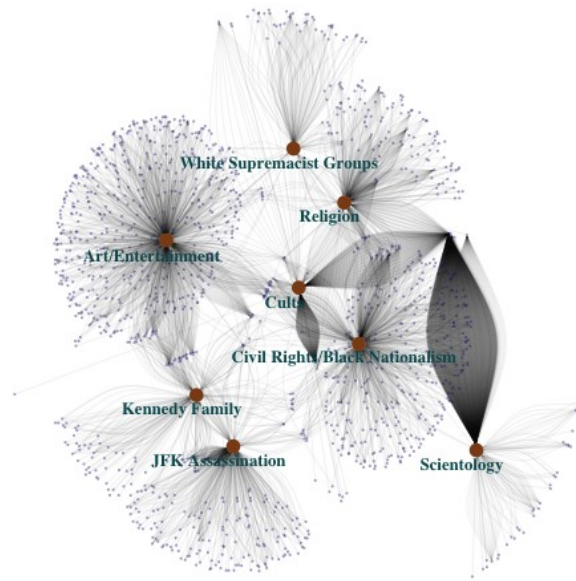


Figure 1: Network of requesters and topics under which their requests subjects fall.

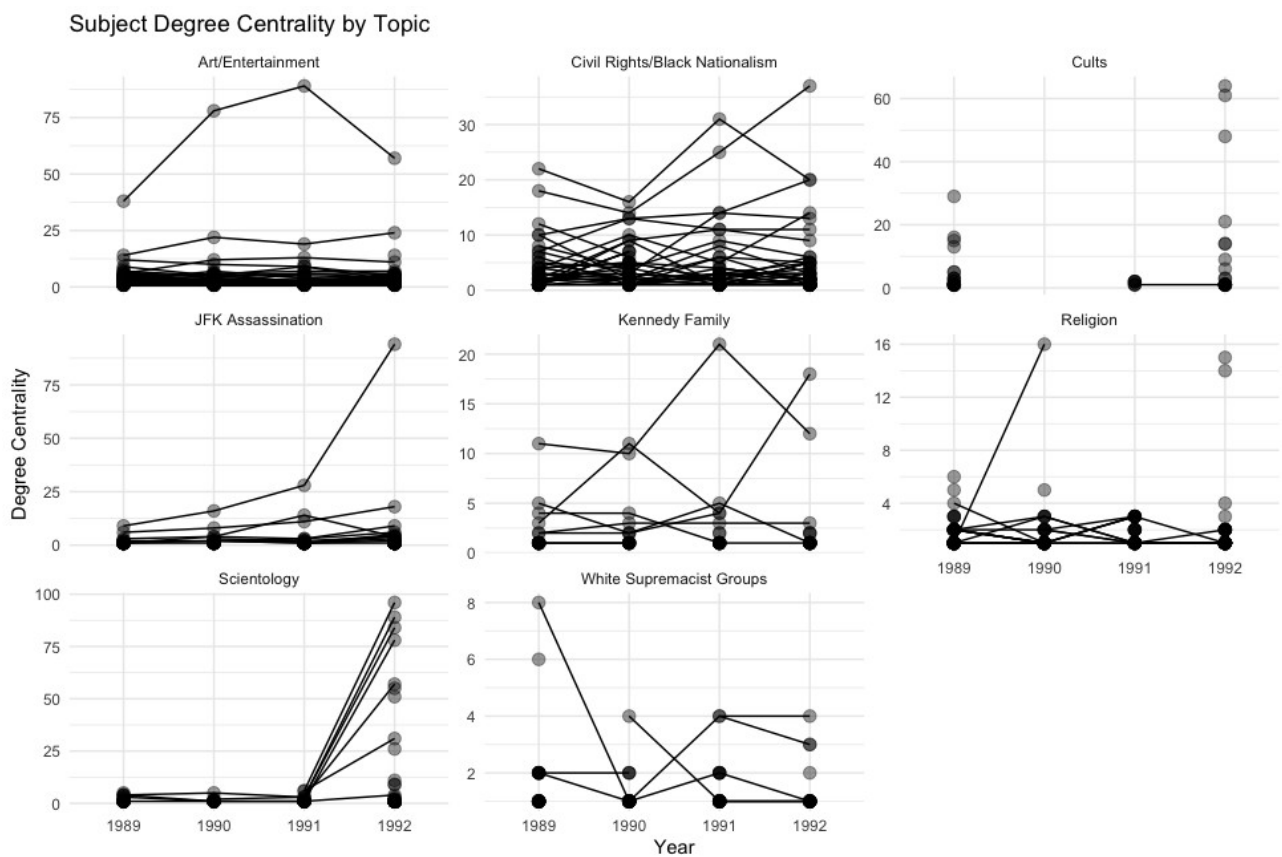


Figure 2: Subject degree centrality over time as grouped by topic. Note the spikes in 1992 for Scientology and the Kennedy Assassination